

26STLC00424 26STLC00424

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-30

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Case Number: 26STLC00424 Hearing Date: July 30, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 30, 2026

Case Name: Approved Contractor, Inc. v. Speiser, et al.

Case No.: 26STLC00424

Matter: Motion for Leave to File Second Amended Cross-Complaint

Moving Party: Defendant Elliot Speiser

Responding Party: Unopposed

Notice: OK

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Defendant Elliot Speiser seeks leave to file a second amended cross-complaint. Defendant states, "First, the amendment will cause no prejudice: trial is nearly three years away and no party has propounded any discovery, so there is nothing to redo

and ample time for AC to investigate and defend. Second, part of the amendment is supported by facts that could not have been pled when the FACC was filed, including latent structural conditions concealed behind finished walls that were exposed only when the Lincoln units were later removed. Third, the remaining amendments refine and add specificity to claims of defective performance and negligence already asserted in the FACC, and add related theories that those same facts support.”

The Court may, in the furtherance of justice, and upon any terms as may be proper, allow a party to amend any pleading. (Code Civ. Proc. §§ 473, 576.) In general, California courts liberally exercise discretion to permit amendment of pleadings in light of a strong policy favoring resolution of all disputes between parties in the same action. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) “[T]here is a strong policy in favor of liberal allowance of amendments.” (*Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296.) Pursuant to this policy, requests for leave to amend generally will be granted unless the party seeking to amend has been dilatory in bringing the proposed amendment before the Court, and the delay in seeking leave to amend will cause prejudice to the opposing party if leave to amend is granted. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490; *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) The decision on a motion for leave is directed to the sound discretion of the trial court. (See generally *Weil & Brown*, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2014) ¶¶ 6:637 et seq.)

Because there is no opposition, it is not apparent that there would be any prejudice from the amendment. Therefore, the Motion is granted.

The SACC is to be filed within 10 days.

Moving party to give notice.